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Case Number: BC674584 Hearing Date: September 10, 2026 Dept: 509

Vickers Holding & Finance Inc. v. Jossiv Kim, et al.

MOTION TO VACATE JUDGMENT

MOVING PARTY: Judgment Debtors Jossiv Kim and Angelina Kim

RESPONDING PARTY(S): Judgment Creditor Vickers Holding

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Vickers Holding and Finance, Inc., (Judgment Creditor) brought this action against Jossiv Kim and Angelina Kim (Judgment Debtors) seeking to recognize and enforce a judgment entered against them in the Netherlands.

On November 16, 2018, judgment was entered against Judgment Debtors. On June 16, 2026, Judgment Creditor filed a renewal of judgment.

Now, Judgment Debtors move to vacate the renewal of judgment and the underlying judgment entered in November 2018. Judgment Creditor opposed.

TENTATIVE RULING:

Judgment Debtors' Motion to Vacate Judgment is DENIED.

Judgment Creditor is ordered to give notice, unless waived.

DISCUSSION:

Motion To Vacate Judgment

Judgment Debtors move to vacate the renewal of judgment and the underlying judgment entered in November 2018 pursuant to Code of Civil Procedure, sections 473.5, 473(d), and 683.170. However, none of these sections provide grounds to vacate either the underlying judgment or the renewed judgment.

1. This Motion is Untimely Under Code Civil Procedure, Section 473.5

A motion brought under Code of Civil Procedure, section 473.5, must be brought within two years of the entry of default judgment.

When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action, the party may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered.

(Code Civ. Pro. §473.5, subd. (a).)

Judgment was entered in November 2018, nearly eight years ago. Relief is therefore unavailable under Section 473.5 as this instant motion is untimely. Further, even if the Court was to consider the motion timely filed, Judgment Debtors received actual notice of the action as discussed below.

2. Section 473(d) Does Not Provide Grounds for Relief

Code of Civil Procedure, section 473(d) provides that “[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” “[I]nclusion of the word “may” in the language of section 473, subdivision (d) makes it clear that a trial court retains discretion to grant or deny a motion to set aside a void judgment. [Citation.] However, the trial court has no statutory power under section 473, subdivision (d) to set aside a judgment that is not void.” (Kremerman v. White (2021) 71 Cal.App.5th 358, 369.)

Here, Judgment Debtors argue the “original California enforcement proceedings were initiated using an incorrect address (Unit 9104 instead of Defendants’ actual residence at Unit 8104), rendering initial service of process constitutionally defective and void.” (Mot. at p. 1.)

However, on October 10, 2017, Judgment Debtors filed an answer to the complaint. This answer constitutes a general appearance. (Code of Civ. Pro., §1014.) A general appearance operates as a consent to jurisdiction of the person, dispensing with the requirement of service of process, and curing defects in service. (Code of Civ. Pro., §§ 410.10, 410.50; Dial 800 v. Fesbinder (2004) 118 Cal.App.4th 32, 52.) Any challenge to service is therefore improper at this time.

Further, Judgment Debtors’ answers were stricken, and defaults were entered because of Judgment Debtors’ failure to appear at multiple hearings. The “Court notes defendant’s multiple failures to appear on: October 12, 2017; November 17, 2017; December 24, 2017; January 5, 2018; November 17, 2017; December 24, 2017; January 5, 2018; March 7, 2018; June 8, 2018; and this date. March 7, 2018; June 8, 2018; and this date.” (8/7/18 Minute Order; Stolyar Decl. Ex. 7.) Each failure occurred after Judgment Debtors’ general appearance in the action. Therefore, there are no grounds to vacate the underlying Judgment pursuant to Code of Civil Procedure, section 473(d) as the judgment is not void.

3. Code Civil Procedure, Section 683.170 Does Not Provide Independent Grounds for Relief

Finally, Judgment Debtors move to vacate the renewed judgment based on Code of Civil Procedure, section 683.170(a). Section 683.170 provides that:

(a) The renewal of a judgment pursuant to this article may be vacated on any ground that would be a defense to an action on the judgment, including the ground that the amount of the renewed judgment as entered pursuant to this article is incorrect, and shall be vacated if the application for renewal was filed within five years from the time the judgment was previously renewed under this article.

(Code Civ. Pro., § 683.170.)

“The judgment debtor bears the burden of proving, by a preponderance of the evidence, that he or she is entitled to relief under section 683.170.” (Fidelity Creditor Service, Inc. v. Browne (2001) 89 Cal.App.4th 195, 199.)

Here, Judgment Debtors argue that they have a judgment-proof status and maintain exclusively exempt income. They argue that they have fully cooperated with the disclosure requirements and have suffered severe hardships from the judgment. Judgment Debtors argue “Maintaining or renewing a judgment against elderly, indigent debtors whose sole income is statutorily protected yields no enforceable recovery for Plaintiff and serves only as an unconscionable and punitive burden.” (Mot. at p. 5.) However, these considerations are not defenses to an action on the judgment. Instead, “[s]uch a collateral attack challenges the jurisdiction of the court to enter the original judgment.” (Goldman v. Simpson (2008) 160 Cal.App.4th 255, 262, *italics in original*.) “The renewed judgment ‘has no independent existence’ from the original judgment.” (*Ibid.*) However, as discussed above, any lack of notice or defect to personal jurisdiction was cured as a result of Judgment Debtors’ general appearance before entry of the underlying judgment.

Accordingly, Judgment Debtors’ Motion to Vacate Judgment is DENIED.

IT IS SO ORDERED.

Dated: September 10, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept509@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.